

COMMITTEE ON COMMERCE
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2680
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 23, chapter 6, article 1, Arizona Revised
3 Statutes, is amended by adding section 23-911, to read:

4 23-911. Workers' compensation; proof of insurance; public
5 database; notice; definition

6 ~~[A. THE COMMISSION SHALL GENERATE AND MAINTAIN A PUBLICLY~~
7 ~~ACCESSIBLE DATABASE THAT CONTAINS AN EMPLOYER'S WORKERS' COMPENSATION~~
8 ~~INFORMATION, AND THE DATABASE MUST INCLUDE ALL OF THE FOLLOWING:~~

9 ~~1. THE NAME OF THE PERSON THAT IS INSURED.~~

10 ~~2. THE NAME OF THE INSURER.~~

11 ~~3. THE EXPIRATION DATE OF THE POLICY.~~

12 ~~B. THE COMMISSION SHALL MAINTAIN A RECORD OF THE WORKERS'~~
13 ~~COMPENSATION POLICIES SOLD BY EACH INSURANCE BROKER OR AGENT.~~

14 ~~C. AN INSURER THAT IS LICENSED OR CERTIFIED IN THIS STATE SHALL~~
15 ~~PROVIDE BOTH OF THE FOLLOWING TO THE COMMISSION:~~

16 ~~1. A COPY OF THE DECLARATION PAGE FOR EACH WORKERS' COMPENSATION~~
17 ~~POLICY FOR INCLUSION ON THE DATABASE.~~

18 ~~2. THE NAME OF THE INSURANCE BROKER OR AGENT THAT SOLD THE WORKERS'~~
19 ~~COMPENSATION POLICY.]~~

20 ~~[D.]~~ [A.] A [DECLARATION PAGE] [CERTIFICATE OF INSURANCE] SHALL
21 INCLUDE ALL OF THE FOLLOWING:

22 1. A QUICK-RESPONSE CODE THAT DIRECTS A USER TO THE [WORKERS
23 COMPENSATION VERIFICATION] DATABASE [AS PRESCRIBED IN SUBSECTION A OF THIS
24 SECTION].

25 2. THE NUMBER OF EMPLOYEES THAT ARE EMPLOYED BY THE INSURED.

26 3. THE ESTIMATED PAYROLL AMOUNT PER EMPLOYEE CLASSIFICATION.

1 ~~[E. ON NOTICE BY AN INSURER, THE COMMISSION SHALL INVESTIGATE~~
2 ~~ALLEGATIONS OF WORKERS' COMPENSATION OR PREMIUM INSURANCE FRAUD OF AN~~
3 ~~INSURED.]~~

4 ~~[F.]~~ [B.] IF AN INSURER ISSUES A ZERO ESTIMATED EXPOSURE POLICY,
5 THE ZERO ESTIMATED EXPOSURE POLICY SHALL INCLUDE A STATEMENT SIGNED BY THE
6 APPLICANT THAT ATTESTS TO THE ACCURACY OF THE INFORMATION PROVIDED IN THE
7 APPLICATION AND THAT THE APPLICANT HAS NO EMPLOYEES AND AN ESTIMATED
8 EXPOSURE OF ZERO, AS FOLLOWS:

9 I ATTEST THAT THE INFORMATION PROVIDED ON THIS
10 APPLICATION IS CURRENT, TRUE, CORRECT, ACCURATE AND COMPLETE
11 TO THE BEST OF MY KNOWLEDGE AND BELIEF. I FURTHER ATTEST THAT
12 I DO NOT HAVE ANY EMPLOYEES AND AN ESTIMATED EXPOSURE OF ZERO.
13 IF I EMPLOY AN EMPLOYEE DURING THE POLICY PERIOD, I WILL
14 PROVIDE WRITTEN NOTIFICATION TO MY WORKERS' COMPENSATION
15 INSURER OF THE EMPLOYMENT WITHIN SIXTY DAYS AND WILL INCLUDE
16 THE ESTIMATED PAYROLL AND CLASSIFICATION CODES OF THE NEW
17 EMPLOYEE. I UNDERSTAND THAT AN INTENT TO DEFRAUD OR ANY
18 OMISSION OR MISREPRESENTATION CONTAINED IN THIS APPLICATION IS
19 UNLAWFUL.

20 ~~[G.]~~ [C.] IF AN EMPLOYER THAT PROVIDES BUSINESS CONSTRUCTION AND
21 IMPROVEMENT SERVICES OBTAINS A ZERO ESTIMATED EXPOSURE POLICY, THE
22 EMPLOYER SHALL PROVIDE TO EACH ENTITY THAT THE EMPLOYER DIRECTLY CONTRACTS
23 WITH A COPY OF THE POLICY AND WRITTEN NOTIFICATION THAT STATES THAT THE
24 EMPLOYER HAS A TOTAL ESTIMATED EXPOSURE OF ZERO. AN ENTITY THAT RECEIVES
25 WRITTEN NOTICE UNDER THIS SUBSECTION SHALL RETAIN THE NOTICE AND THE
26 POLICY FOR AT LEAST THREE YEARS AFTER THE DATE OF RECEIPT.

27 ~~[H.]~~ [D.] FOR THE PURPOSES OF THIS SECTION, "ZERO ESTIMATED
28 EXPOSURE POLICY" MEANS AN INSURANCE POLICY THAT IS OBTAINED BY AN EMPLOYER
29 TO COVER THE EMPLOYER'S LIABILITY TO PAY COMPENSATION AFTER THE EMPLOYER
30 REPORTS A TOTAL ESTIMATED EXPOSURE OF ZERO.

31 Sec. 2. Applicability

32 Section 23-911, Arizona Revised Statutes, as added by this act,
33 applies to contracts that are entered into on or after the effective date
34 of this act.

35 Enroll and engross to conform

36 Amend title to conform

JEFF WENINGER
CHAIRMAN

2680COMMERCE.docx
02/18/2026
03:48 PM
H: PB/ra
130CBDSXQ